

		However, <i>Code of Civ. Proc. § 2033.280(c)</i> indicates that sanctions are mandatory on “the party or attorney, or both, whose failure to serve a timely response to request for admission necessitated this motion.” Accordingly, sanctions are ordered against Defendant in the reduced amount of \$1, 290, due and payable through Plaintiffs’ attorney of record within 30 days of this order. <i>Plaintiffs’ counsel to give notice.</i>
4.	Yakoub v. Aguilar 24-1393709	Before the Court at present is the “Motion to Quash Defendants’ Subpoena for Plaintiff’s Out of State Records Pursuant to <i>C.C.P. §§ 1987.1 et seq.</i>, and <i>1985.3(g)</i>” filed by Plaintiff Mohab Yakoub (“Plaintiff”) on 11/8/24. As reflected in the Opposition, the Motion on the merits is now MOOT, as the subpoena at issue was promptly withdrawn after this Motion was filed. (ROA 51, Kandarian-Stein Decl. at ¶ 11, and Ex. C.) What remains at issue is the respective requests for sanctions. Both sides’ sanctions requests are DENIED. Plaintiff is correct that the subpoena at issue was improperly directed to another state, without complying with <i>C.C.P. § 2026.010</i>. The defense is thus not entitled to sanctions here, despite the conduct of Plaintiff’s counsel in addressing the issue. However, the defense has otherwise shown good cause for seeking at least a substantial portion of the records at issue. (ROA 51, Kandarian-Stein Decl. at ¶¶ 3-5 and Exs. A, B.) Instead of cooperating with the defense to provide those records reasonably requested, Plaintiff just asserted extensive objections and demanded withdrawal of the subpoena and payment of sanctions. (ROA 42, Shirazi Decl., ¶¶ 3-11, and Exs., 1-5.) As Plaintiff failed to make a reasonable effort to resolve the dispute and to cooperate in allowing reasonable discovery, Plaintiff’s sanctions request is also DENIED. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
5.	Sorto v. Mihalīs 23-1350662	<i>(Off calendar- matter transferred)</i>
6.	Ricks v. Wine Cellar Designers Group, LLC 22-1274692	The motions to compel responses to Special Interrogatories, Set One, and Request for Production of Documents, Set Two, from defendant Wine Cellar Designers Group, LLC (“Defendant”) filed by Plaintiff Tyler Ricks (“Plaintiff”) are DENIED.